

		party's contractual duties only when nonperformance is willful, grossly negligent, or fraudulent.” (Id. at p. 322.) Application Here, it is undisputed that a valid arbitration agreement exists that covers the parties' underlying claims, that the parties previously participated in contractual arbitration administered by JAMS, and that Respondents withdrew the claim from arbitration pursuant to Code of Civil Procedure section 1281.98(b). Petitioners argue they are entitled to compel arbitration because their failure to pay invoice fees should be excused under Hohenshelt. Specifically, Petitioners submit evidence they did not receive actual notice of the outstanding invoice until after the deadline to pay the invoice had passed. (See Lust Decl. ¶ 11, Ex. G.) Respondents submit evidence showing that Paradigm had actual notice of the outstanding fees as early as 09/26/2025 (see Smith Decl. ¶¶ 5, 7, Exs. E-G) and no later than 10/09/2025 (see Smith Decl. ¶¶ 9-10, Exs. I-K). Each notice went to multiple attorneys at Paradigm's counsel. Furthermore, the 10/09/2025 correspondence from JAMS shows, which Paradigm concedes to have received (see Lust Decl., Ex. G): (1) includes a standalone invoice; (2) states all “Payment is due upon receipt”; and (3) includes an admonishment that “California Code of Civil Procedure sections 1281.97-1281.99 may apply to the payment of fees for this arbitration.” (See Smith Decl., Ex. K.) Petitioners chose not to file a reply and, thus, concede they received actual notice of the outstanding fees with sufficient time to pay the invoices. (See, e.g., DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) For this reason, the court will DENY Petitioners' petition to compel arbitration. Respondents to give notice.
7	Huang vs. BMW of North America, LLC	Plaintiff Jackson Huang moves an award of attorney's fees and costs against Defendant BMW of North America, LLC. For the following reasons, the motion is GRANTED IN A REDUCED AMOUNT. Defendant is ORDERED to pay Plaintiff \$64,000 in attorney's fees and \$1,785.37 in costs. Civil Code section 1794, subdivision (a) states: “Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied